

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/08/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MS21-0005

CASE NAME: FERNANDES VS. BROSTRAND

COURT TRIAL HEARING

FILED BY:

TENTATIVE RULING:

Parties to appear at 10:00 am for trial pursuant to Order entered May 20, 2026.

2. 9:00 AM CASE NUMBER: C22-01913

CASE NAME: D.B. VS. DOES 2 THROUGH 25

*HEARING ON MOTION IN RE: LEAVE TO FILE 3RD AMENDED COMPLAINT

FILED BY: D.B.

Before the Court is Plaintiff D.B.'s Motion for Leave to File Third Amended Complaint.

Factual and Procedural Background

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. Plaintiff was placed in foster care with an approved, licensed, and trained foster family from approximately 1975 to 1979, when she was about twelve to fifteen years of age. While at that home, Plaintiff alleges she was regularly and repeatedly sexually abused and assaulted by her foster father.

Plaintiff reported the sexual abuse to her social worker, an employee of Defendant County. Despite the reports, the County failed to investigate the reports, failed to notify local law enforcement, and failed to remove her from the foster home. In other words, no corrective actions were taken. Plaintiff remained in the foster home and the sexual abuse continued.

Plaintiff filed her initial complaint on September 9, 2022. A First Amended Complaint was filed on December 16, 2022. In June 2023, the parties stipulated to the filing of a Second Amended Complaint, which was filed on September 5, 2023.

On July 28, 2025, the County filed a motion for judgment on the pleadings. After hearing argument on the motion, the Court issued an Order after Hearing ("Order") on January 6, 2026, sustaining the motion without leave to amend. The Order specifically indicated, however, that if Plaintiff believed "she should be given leave to amend to allege new cause(s) of action, [she] should file a motion for leave to amend so that the parties can properly and fully brief the issue."

Plaintiff filed the instant motion for leave to file her Third Amended Complaint ("TAC") on January 23, 2026. Defendant County opposes the motion. As of the date of the drafting of this tentative ruling, Plaintiff did not file a reply.

Legal Standard

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable prejudice to the opposing party'... [Citation.]" (*Ibid.*)

"[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) "Generally, leave to amend

must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Ibid.* quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Currently, there is no trial date. The next CMC is scheduled for August 28, 2026.

Analysis

As the parties acknowledge in their papers, the essence of the Court’s earlier ruling on the County’s MJOP related to Plaintiff’s failure to properly plead a negligence cause of action based on the allegations which relied exclusively upon discretionary actions of the County employees. The SAC relied upon the allegations of liability under California Government Code section 820. The Order was limited to a review of the allegations in the FAC and relied upon the analysis and holding of *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606, which the Court found was “controlling.”

Plaintiff, via the proposed TAC, removes the allegations for liability for discretionary acts under section 820, and instead now relies upon section 815.6 – which pertains to a failure to discharge mandatory duties. The proposed TAC also provides a list of statutes and Department of Social Services Child Welfare Services Manual sections to form the basis of the alleged mandatory duties.

In Opposition, the County argues that leave to amend should be denied for two reasons: (1) the TAC is subject to demurrer, and (2) the TAC does not relate back to the original complaint.

As to the first argument, the County does not provide any substantive arguments explaining why the proposed amendments would be futile. Instead, it argues that Plaintiff is still merely asserting a negligence claim against it based on the claim that the County employees “were negligent in their decision to remove the Plaintiff from a foster home based upon allegations of abuse,” and that this theory “has been ruled upon by this Court.” (Opp. at 5:8-11.)

That is a misreading of the Court’s earlier ruling. The Court’s earlier ruling explicitly found that Plaintiff did not, and could not, allege a claim against the County based on the alleged discretionary actions of its employees – relying on the holding in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606. The Court did not address any claims based on a violation of purported mandatory reporting duties. Instead, the Court specifically indicated that the “SAC does not contain a claim based on alleged mandatory reporting requirements,” and instead invited Plaintiff to seek leave to amend if “Plaintiff believes [she] should be given leave to amend to allege new cause(s) of action....”

It is true that certain situations would call for denial of leave to amend, such as when the “insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81.) The County, however, does not provide any

argument that Plaintiff's proposed TAC does not and cannot state a negligence claim based on the County's employee's violation of a mandatory reporting duty.

It is clear that "the preferable practice would be to permit the amendment and allow the parties to test the legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 quoting *California Casualty Gen. Ins., supra*, 173 Cal.App.3d at 281.) As noted by Plaintiff, if leave to amend is granted, the County will still be able to challenge the TAC via demurrer or other proceedings.

Regarding the 'relation back' contention, the County fails to fully explain its argument. While it mentions the relation back doctrine, it does not explain what it is or how it applies here. Its citations to *Irving v. Carpentier* (1886) 70 Cal. 23 and *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 180 also appear misplaced.

Irving does not discuss the relation back doctrine at all. Instead, it specifically deals with the addition of a Doe defendant under section 474 of the Code of Civil Procedure and the necessity of the plaintiff to aver that they had no knowledge of that defendant at the time they filed their complaint. (*Irving*, 70 Cal. at 25-26.) It also does not stand for the proposition, as the County asserts, that the "courts should not reward the plaintiff who overlooks 'readily available' means which could have been included in previous iterations of complaints." (Opp. at 5: 17-19.) Initially, the decision does not include the words "readily available" (nor the word 'available') anywhere therein. It also specifically holds that being ignorant of the identity of a potential defendant is all that is required: "Whether his ignorance is from misfortune or negligence, he is alike ignorant, and this is all the statute requires." (*Id.* at 26.) Section 474 does not require a plaintiff to 'use reasonable diligence' to have discovered the identity of potential defendants. (*Ibid.*)

Likewise, *Woo v. Superior Court* also pertains to an amendment to a complaint to add a new defendant. (*Id.* at 175-76.) The *Woo* court explained that the "general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applies as of the date the amended complaint is filed, not the date the original complaint is filed." (*Id.* at 176.) There is a noted exception to the general rule for the "substitution under section 474 of a new defendant for a fictitious Doe defendant...." (*Ibid.*) That situation does not apply here.

Conclusion

Plaintiff's motion for leave to amend is **GRANTED**. Plaintiff shall file the Third Amended Complaint within 10 days of notice of entry of this order.

3. 9:00 AM CASE NUMBER: C22-02054
CASE NAME: CHRISTOPHER WRIGHT VS. SWINERTON BUILDERS
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:
TENTATIVE RULING:

Defendant Swinerton Builder's motion for summary judgment is denied.

Plaintiff Christopher Wright was an employee of a contractor during a multi-contractor jobsite in Atherton, California. Plaintiff fell at the egress site of the property and was injured. Plaintiff alleges that Defendant controlled the access to the jobsite and that Defendant created tripping hazards and safety problems. Defendant was not Plaintiff's employer. Plaintiff sued Defendant for negligence and premises liability.

Defendant filed this motion for summary judgment arguing that the *Privette* doctrine bars Plaintiff's claims against Defendant.

Privette Doctrine

Defendants argue that the *Privette* doctrine applies here and bars Plaintiff's claims against them. "When a person or organization hires an independent contractor, the hirer presumptively delegates to the contractor the responsibility to do the work safely. [Citations.]" (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 269.) The *Privette* doctrine states that a hirer is ordinarily not liable to the contract workers for injuries. (*Id.* at 270.) There are, however, exceptions to this doctrine. Including that (1) "a landowner-hirer owes a duty to a contract worker if the hirer fails to disclose to the contractor a concealed premises hazard. (*Kinsman v. Unocal Corp.* (2005)] 37 Cal.4th [659,] 664.)" And that (2) "a hirer owes a duty to a contract worker if the hirer retains control over any part of the work and actually exercises that control so as to affirmatively contribute to the worker's injury. (*Hooker v. Department of Transportation* (2002)] 27 Cal.4th [198,] 202.)" (*Sandoval, supra*, 12 Cal.5th at 271.)

Once a moving defendant has provided the requisite factual foundation for the *Privette* presumption to apply, the burden shifts to the Plaintiff to raise of triable issue of fact. (*Alvarez v. Seaside Transportation Services LLC* (2017) 13 Cal.App.5th 635, 644; *Horne v. Ahern Rentals, Inc.* (2020) 50 Cal.App.5th 192, 201.) A defendant meets its burden by showing that the defendant hired plaintiff's employer to perform work at defendant's premises (or a general contractor hired a subcontractor to do work), and that plaintiff was injured while working on that site. (*Ibid.*)

Here, Defendant's undisputed facts show that Defendant entered into a contract with the property owner for the construction project and that Defendant acted as general contractor on the project. (Fact 18.) Plaintiff was an employee of Collins Electrical, a subcontractor working on the project. (Fact 22, 30.) Collins Electrical is an independent contractor. (Fact 23.) Plaintiff was injured on March 4, 2021, when he exited the building and fell. (Fact 33.) These facts are sufficient for Defendant to meet its initial burden showing that the *Privette* doctrine applies. The burden now shifts to Plaintiff to show that there is a triable issue of material fact as to one of the exceptions to *Privette*.

Privette Exception: Concealed Hazards

Kinsman held that "the hirer as landowner may be independently liable to the contractor's

employee, even if it does not retain control over the work, if: (1) it knows or reasonably should know of a concealed, preexisting hazardous condition on its premises; (2) the contractor does not know and could not reasonably ascertain the condition; and (3) the landowner fails to warn the contractor.” (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 675.)

Plaintiff argues that *Kinsman* applies here and focuses on the elements as stated in CACI 1009A. Plaintiff’s argument does not show that the hazard was concealed, which is a key component of the *Kinsman* rule and CACI 1009A. Nor does Plaintiff provide evidence that the hazard was concealed.

To the contrary, the evidence shows that the hazard was open and obvious. Plaintiff testified that on the day of his injury he exited the building. He then stepped over the rebar with his left foot and then put his right foot on the form. His right foot slipped, causing him to fall. (D’s ex. 35: Plaintiff depo 42:25-43:25.)

Both sides refer to a photograph, Swinerton 887, which shows the area where the accident occurred. This photograph is referred to as Exhibit 10 in several depositions, included as Exhibit 27 in the Defendant’s evidence and Exhibit 2 to Kyle’s declaration in Plaintiff’s evidence. The photograph shows the “ramp”, which was the path Plaintiff used to exit the building. It also shows a “plank”, however Plaintiff and Kyle both stated that the plank was not there on the day of the accident. (D’s ex. 35: Plaintiff depo. 45:21-46:1; Kyle dec. 9.)



Based upon the evidence, including the photographs provided by the parties, the Court finds that Plaintiff has not shown that there is a triable issue as to whether the hazard was concealed. Therefore, the *Kinsman* exception does not apply.

Privette Exception: Retained Control

“A hirer ‘retains control’ where it retains a sufficient degree of authority over the manner of

performance of the work entrusted to the contractor. ... So ‘retained control’ refers specifically to a hirer’s authority over work entrusted to the contractor, i.e., work the contractor has agreed to perform. For simplicity we will often call this the ‘contracted work’—irrespective of whether it’s set out in a written contract or arises from an informal agreement. A hirer’s authority over noncontract work—although potentially giving rise to other tort duties—thus does not give rise to a retained control duty unless it has the effect of creating authority over the contracted work. [Citation.] Furthermore, a hirer’s authority over the contracted work amounts to retained control only if the hirer’s exercise of that authority would sufficiently limit the contractor’s freedom to perform the contracted work in the contractor’s own manner.” (*Sandoval, supra*, 12 Cal.5th at 274-275; see also CACI 1009B.)

“To establish that the hirer owes a duty of care to the contractor’s employees, therefore, the plaintiff must establish both that the hirer retained control over the contracted work, and that the hirer actually exercised that retained control in a manner that affirmatively contributed to the contract worker’s injury. [Citation.] The court noted, however, that neither ‘actual exercise’ nor ‘affirmative contribution’ require that the hirer’s alleged negligence consist of an affirmative act. Instead, ‘[t]he hirer’s negligence may take the form of any act, course of conduct, or failure to take a reasonable precaution that is within the scope of its duty under *Hooker*. ... [¶] ... [¶] If a plaintiff proves that the hirer actually exercised retained control in a way that affirmatively contributed to the contract worker’s injury, the plaintiff establishes that the hirer owed the contract worker a duty of reasonable care as to that exercise of control.’ [Citation.]” (*Brown v. Beach House Design & Dev.* (2022) 85 Cal.App.5th 516, 528-529 [citing to *Sandoval, supra*, 12 Cal.5th at 277–278].)

Here there is evidence that Defendant provided access to and from the project for all subcontractors. Defendant would decide where the point of egress would be on any particular day. (P’s ex. 11: Nelson depo. 49:11-19; ex. 13: Lugo depo. 19:3-9, 27:24-28:24.) Defendant would advise the subcontractors of areas of ingress and egress during meetings, and when necessary place ramps for workers to use. (Kyle dec. 4.) The location where rebar would be stored on the jobsite is usually determined by the general contractor, in this case the Defendant (P’s ex. 7 Vasconi Depo. 25:16-26:23; ex. 16: Maldonado depo. 31:25-32:17.) The ramp that leads from the building towards the rebar was not placed there by Plaintiff’s employer. Instead, Kyle testified that the ramp was made of heavy steel or iron and he was only aware of Defendant having such equipment. (Kyle dec. 12.) Kyle’s statement provides a reasonable inference that the ramp was placed there by Defendant.

This evidence is sufficient to show that Defendant determine the methods of ingress and egress and told all subcontractors which route to use. The evidence shows that Defendant, as the general contractor, would have told the rebar company where to place the rebar. Finally, there is a reasonable inference that Defendant placed the ramp leading towards the rebar. The Court finds that there is a triable issue of material fact as to whether Defendant controlled Plaintiff’s method for entering and exiting the building and that it this control was a cause of Plaintiff’s injury.

Defendant argues that *Kinney v. CSB Constr., Inc.* (2001) 87 Cal.App.4th 28 applies here. In *Kinney* the court found that a general contractor who claims the power to control all safety procedures on the worksite is not liable to the injured employee of a subcontractor for failing to direct the subcontractor to take safety precautions *where there is no evidence that any conduct by the general contractor contributed affirmatively to the injuries.* (*Kinney, supra*, 87 Cal.App.4th at 30.) *Kinney’s* holding was limited to cases where there is no evidence that the general contractor affirmatively contributed to the injury. (*Id.* at 36.) Here, however, the Defendant controlled the location of ingress

and egress and it was this location where Plaintiff was injured. Thus, the evidence shows that there is a triable issue of material fact as to whether Defendant affirmatively contributed to Plaintiff's injury by telling Plaintiff where to walk in what was a potentially dangerous location.

Plaintiff has shown that there is a triable issue as to whether the retained control exception applies here and therefore, summary judgment is DENIED.

Objections to Evidence

The Court rules on Plaintiff's objections to evidence as follows:

1. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
2. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
3. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
4. Overruled. Plaintiff objects to a fact in the separate statement that is based on two pieces of evidence, but the basis for the objection addresses only the discovery responses and not the master contract.
5. Overruled. Plaintiff objects to a fact in the separate statement that is based on several pieces of evidence, but the basis for the objection addresses only the discovery responses and not the master contract.

The Court rules on Defendant's objections to evidence as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.
8. Overruled.
9. Overruled.
10. Sustained as to the following: "it would have to have been placed by laborers or carpenters who would either be employed by Swinerton or the concrete/rebar contractor. Otherwise overruled.
11. Overruled.
12. Overruled.
13. Overruled.
14. Overruled.

4. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON

***HEARING ON MOTION IN RE: ORDER VACATING ORDER DEEMING MATTERS ADMITTED, AND FOR MOTION FOR ORDER DEEMING RESPONSES TO REQUESTS FOR ADMISSION-SET ONE
FILED BY: HORTON, RICKY DEAN**

TENTATIVE RULING:

On January 22, 2026, defendant Ricky Dean Horton (“Defendant R. Horton”) and defendant Kevin Horton (“Defendant K. Horton”) (collectively, the “Defendants”) both filed motions for an “Order Vacating Order Deeming Matters Admitted; and for Order Deeming Responses to Requests for Admissions, Set One, as Timely and Proper” (the “Motions for Relief from Deemed Admissions”). The Motions for Relief from Deemed Admissions were set for hearing on June 8, 2026.

Background

On November 14, 2025, the Court entered an order granting deeming certain admissions having been made by both Defendants as a result of their having failed to timely respond to requests for admissions propounded by plaintiff Old Republic National Title Insurance Company (“Plaintiff”). See Order entered November 14, 2025 (the “Deemed Admitted Order”). The Deemed Admitted Order, among other things, included an order that “The Court deems RFA’s as against Defendant KEVIN HORTON and Defendant RICKY DEAN HORTON deemed admitted.” *Id.*

The requests for admissions deemed admitted were the Requests for Admission, Set One, (the “RFAs”) propounded on July 24, 2025 on each of the Defendants. See Declaration of Tanner D. Brink filed September 9, 2025, ¶13 and Exhibit A and C (Proof of Service);[FN1] see also Declaration of Ricky Dean Horton filed January 22, 2026 (the “Defendant R. Horton Supporting Declaration”), ¶12 and Declaration of Kevin Horton filed January 22, 2026 (the “Defendant K. Horton Supporting Declaration”), ¶12 (collectively referred to as the “Supporting Declarations”).

FN1: Two substantially similar declarations as to the RFAs served on each of the Defendants were filed the same date.

Both Supporting Declarations make reference to “initial responses” to the RFAs that were served “via email on or about August 23, 2025” wherein the Defendants asserted their “Fifth Amendment right to not be a witness against [themselves] to the requests.” Supporting Declarations, ¶13. They assert that they “mistakenly believed” this right applied to civil discovery. *Id.*

Defendants then describe the motion having been granted at the hearing October 22, 2025 and their representation during that hearing that Defendants would file their “answers” to the RFAs. Supporting Declarations, ¶¶4-5. Defendants state that, thereafter, they responded on October 24, 2025 to the RFAs with “complete, substantive responses.” *Id.* at ¶15 and **Exhibit A** thereto (the “October 24, 2025 Responses to the RFAs”).

Defendants now seek relief from the Deemed Admitted Order.

Pleadings styled as a “Supplemental Declaration” were filed by both Defendants on April 22, 2026 (the “Supplemental Declarations”). However, those documents are not proper declarations, as they contain substantial argument well beyond merely supplementing the prior declarations. The Supplemental Declarations are STRICKEN and have been disregarded by the Court (as well as the later “Notice of Lodgment” filed April 22, 2026). Defendants are admonished that these sorts of pleadings—purported declarations intermingling asserted factual statements under oath with arguments and legal citations—are improper.

Opposition papers were filed on May 26, 2026. Reply papers were filed May 29, 2026.

Analysis

There are several fundamental problems with Defendants' arguments that they have now cured the failure to respond and their belated RFAs responses should somehow be adequate for the Court to vacate the Deemed Admitted Order.

First, the October 24, 2025 Responses to the RFAs were not in proper form so as to be substantially compliant with the requirements of the Civil Discovery Act. While some RFAs were admitted or denied, the responses to multiple others included the statements such as "I don't recall," "[w]ithout knowledge" and other improper commentary ("Refer to the reconveyance?"). See October 24, 2025 Responses to the RFAs, Supporting Declarations, **Exhibit A**. Such responses are not sufficiently code compliant. See Code Civ. Proc. § 2033.220. Even if read to be intended to assert a lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, the Code expressly requires a responding to "state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." *Id.*

Second, even if the October 24, 2025 Responses to the RFAs were substantially compliant, they came too late, days after the hearing. A responding party's service, **before the hearing** on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); *St. Mary v. Superior Court*, *supra*, 223 Cal.App.4th at 776; see also CJER, *California Judges Benchbook: Civil Proceedings - Discovery* (2024) ("CJER Civ. Proc. Discovery"), § 21.22. Defendants' responses were not served "before the hearing on the motion." Code Civ. Proc. § 2033.280(c).

Of course, the Court may, upon motion, permit a party against whom a deemed admitted was made to withdraw or amend such deemed admissions. *Wilcox v. Birtwhistle* (1999), 21 Cal. 4th 973, 980 (the Civil Discovery Act permits the withdrawal or amendment of deemed admissions); see Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 8:1386b ("Weil & Brown"); Code Civ. Proc. § 2033.300.

Even construing Defendants' motions as seeking such relief, the Court concludes that such relief is unwarranted.

To grant such relief, the Court must conclude that the admission **(1) was the result of mistake, inadvertence, or excusable neglect, and (2) that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits**. Code Civ. Proc. § 2033.300; see Weil & Brown § 8:1386.1; see *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1418.

Even if the Court accepts the premise that the failure to timely respond was the result of what Defendant now characterize as a mistaken belief as to the applicable law and the operation of the discovery statutes, the question becomes whether such mistake was excusable or not. The Court concludes that it was not.

In the similar context of relief under Code of Civil Procedure section 473, neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

Although it is well settled that an honest mistake of law may justify relief under Code of Civil Procedure

section 473, there appears to be no exact test for determining the issue under the caselaw. However, the caselaw generally recognizes that the determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law. *Fidelity Federal Sav. & Loan Asso. v. Long* (1959) 175 Cal.App.2d 149, 154 (“*Fidelity Federal*”); see *Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1111 (“The determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law.”). Normally relief is denied where the alleged mistake of law is the result of professional incompetence based upon erroneous advice, general ignorance of the law or lack of knowledge of the rules, or unjustifiable negligence in the discovery or research of the law, laxness or indifference. *Fidelity Federal, supra*.

The Court is not inclined to conclude an excusable mistake ought to extend to the circumstances one where a party vigorously advances an objectively unreasonable legal position and then turns around and says it should be relieved from the consequences of advocating that position because that party was “mistaken” as to their legal position.

The parties now seeking relief, Defendants, had advanced legal positions based on far-fetched and objectively unreasonable positions such as that none of the discovery statutes even apply to the Defendants:

The corporate government DBA STATE OF CALIFORNIA operates under a completely separate and distinct jurisdiction as compared to the jurisdiction of the common laws of nature and nature's God.

* * *

All judicial actors are hereby notified that the statutes and codes of government are not applicable to me if they infringe, in any way, upon my unalienable and constitutionally protected rights.

Kevin Horton’s Opposition filed October 9, 2025, pp. 2 and 4. Defendants continued to advocate this position even in their “reply” to the moving party’s reply briefing. See e.g. Reply Brief filed October 20, 2025.

The Court finds that the supposed mistaken belief on which Defendant rely reflects unjustifiable negligence in the discovery or research of the law and/or indifference to the applicable law.

Given Defendants’ failure to demonstrate mistake, inadvertence, or excusable neglect, the Court need not address the issue of whether the party who obtained the admission will not be substantially prejudiced.

Disposition

The Court further finds and orders as follows:

1. The Motions for Relief from Deemed Admissions are DENIED.
2. The Court will issue the order after hearing.

5. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
HEARING IN RE: ORDER VACATING ORDER DEEMING MATTERS ADMITTED, AND FOR ORDER
DEEMING RESPONSES TO REQUESTS FOR ADMISSION-SET ONE
FILED BY:
TENTATIVE RULING:

See LINE 4 above.

6. 9:00 AM CASE NUMBER: C24-00008
CASE NAME: KIM HUNTER-REAY VS. EDWARD KRAVITZ
*HEARING ON MOTION IN RE: TERMINATING SANCTIONS
FILED BY: KRAVITZ, EDWARD
TENTATIVE RULING:

Defendants Carol Kravitz and Edward Kravitz (“Defendants”) filed a Motion for Terminating Sanctions on January 23, 2026 (the “Motion for Sanctions”). The Motion for Sanctions was set for hearing on June 8, 2026. The motion was duly served. The motion is unopposed.

Background

Plaintiff’s Motion for Sanctions seeks the imposition of a terminating sanction against plaintiff Kim Hunter-Reay (“Plaintiff”) because Defendants contend that Plaintiff has defied the Court’s prior discovery orders. Alternatively, Plaintiff seeks “other such sanctions or orders” as may be “appropriate.”

The Motion for Sanctions is supported by the Declaration of Melissa Grant Zamora. See Declaration of Melissa Grant Zamora filed January 23, 2026 as part of the Motion for Sanctions (the “Supporting Declaration”).

A Notice of Non-Opposition was filed on June 1, 2026 by Defendants.

Analysis

Defendants make reference to a prior order issued by the Court compelling Plaintiff to provide further responses to certain discovery propounded by Plaintiff. See Order dated October 15, 2025 (the “October 15th Order”). Among other things, Plaintiff was ordered to provide responses to the subject discovery (the “Discovery Responses”):

IT IS HEREBY ORDERED that Defendant’s unopposed motion to compel is granted.
Plaintiff shall serve code compliant verified responses to form interrogatories and special
interrogatories by September 22, 2025.

Plaintiff shall also serve code compliant verified responses to the request for production of
documents by September 22, 2025.

See October 15th Order, p. 1. \$322.84 in monetary sanctions (the “Sanctions”) was also awarded and ordered to be paid by September 22, 2025.[FN1] *Id.*

Despite notice of the October 15th Order, Plaintiff failed to provide any of the Discovery Responses as

ordered. Supporting Declaration, ¶10-11. Plaintiff also failed to pay the Sanctions ordered. *Id.* at ¶11.

Plaintiff's failure to comply with the Court's October 15th Order, including providing the ordered Discovery Responses by the court imposed deadline, constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d) as well as disobeying a court order to provide discovery, pursuant to Code of Civil Procedure section 2023.010(g).

The Court has considered the appropriate remedy, including whether to impose an incremental sanction so as to give Plaintiff an opportunity to comply before resorting to terminating or issue sanctions.

The Court finds that the just and appropriate remedy is the issuance of a terminating sanction. Plaintiff has failed to provide responses to duly propounded discovery which Plaintiff's counsel confirmed was received in December 2024. See Declaration filed May 1, 2025, ¶2.[FN2] The Discovery Responses have been past due for nearly 17 months at this point. See *id.* at ¶2. Plaintiff failed to meet and confer on the underlying discovery motion. Plaintiff failed to engage with this follow up motion or take any action to even communicate with Defendants about remedying the non-compliance. See Supporting Declaration, ¶10-11.

Defendants have been prejudiced in their ability to defend this case as a result of the non-compliance. See Supporting Declaration, ¶12.

The Court finds that the foregoing conduct by Plaintiff constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of a terminating sanction.

Given the foregoing and having considered the totality of the circumstances, including Plaintiff's utter failure to even appear to address this motion and the wholesale failure to comply with the Court's order to provide the Discovery Responses, the Court concludes that a terminating sanction by an order dismissing Plaintiff's action pursuant to Code of Civil Procedure section 2023.030(d)(3) is just and appropriate.

The history of Plaintiff's non-compliance is indicative of a pervasive, ongoing and willful failure to comply with discovery obligations and there is no indication that the imposition of further monetary sanctions or other less remedies will result in compliance. Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.

FN1: The hearing on the motion was heard on August 25, 2026. Accordingly, the Court gave Plaintiff nearly a month to pay the Sanctions, notwithstanding the date of entry of the final order.

FN2: The Court is mindful of and has considered the pleadings filed in connection with the underlying motion to compel.

Disposition

The Court further finds and orders as follows:

1. The Motion for Sanctions is **GRANTED**.
2. Plaintiff's Complaint filed January 2, 2024 is **DISMISSED**.
3. The Court shall issue the order after hearing.

7. 9:00 AM CASE NUMBER: C24-00356
CASE NAME: SUSAN SHINTAKU VS. CITY OF ANTIOCH
*HEARING ON MOTION FOR DISCOVERY TO COMPEL DEF CITY OF ANTIOCH'S FURTHER RESPONSES
TO REQUESTS FOR ADMISSION SET THREE
FILED BY: SHINTAKU, SUSAN
TENTATIVE RULING:

Plaintiff Susan Shintaku ("Plaintiff") filed a Motion to Compel Defendant City of Antioch's Further Responses to Requests for Admission Set Three on December 30, 2025 (the "Motion to Compel Further Responses to RFAs"). The Motion to Compel Further Responses to RFAs was set for hearing initially on June 1, 2026. Later, the Court, sua sponte, continued the motion to June 8, 2026.

Background

No opposition papers have been filed. However, on June 2, 2026, the moving party filed a "Notice of Rescheduling Motions" seeking to reschedule this and another discovery motion set for hearing on June 15, 2026 regarding Form Interrogatories, Set Three (the "Motion to Compel Further Responses to FROGS"). The pending discovery motions are referred to herein as the "Discovery Motions."

In light of the foregoing, the Court will continue the motion. The Court also, *sua sponte*, makes the orders below in regard to further meet and confer to be done between the parties regarding the discovery requests at issue in the Discovery Motions.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses to RFAs and the Motion to Compel Further Responses to FROGS are **CONTINUED to August 31, 2026, 9:00 am, in Department 34.**
2. **Pending Discovery Motions and Further Court Ordered Meet and Confer.** The parties are ordered to engage in further meet and confer regarding resolution of the discovery requests and responses at issue in the Discovery Motions **within forty-five (45) days** of the date of this order. If not resolved through such informal talks, the parties are ordered to prepare and submit the following:
 - a. **Joint Separate Statement.** No later than **fifteen (15) days** in advance of the hearing date on the Discovery Motions, the parties shall prepare and file, if all issues have not been resolved, a Joint Separate Statement as to any remaining discovery requests in dispute.
 - b. **Joint Separate Statement Content.** The Joint Separate Statement shall, in a table format with separate rows divided into five separate columns, identify: (1) the discovery request at issue with the full text of the request, (2) the full text of the written response (and containing ONLY the most recent and operative response at issue if a prior supplemental or amended response has been made), (3) the propounding party's contentions regarding any inadequacy of the written discovery response and/or document production; (4) any response by responding party as to why the written discovery response and/or document production is adequate; and (5) any reply by the propounding party to the response. **No single entry on the Joint Separate Statement shall exceed 200 words (except as to the verbatim recitation of the requests and**

responses in Column Nos. 1 and 2).

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Discovery Motions.
 - e. **Courtesy Hard Copy and Hard Copy Format.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 34 not less than one week in advance of the hearing date on the Discovery Motions. **Except as to any cover pleading page(s), this hard copy shall be provided on legal sized paper and printed in a landscape orientation with no less than a 14 point font.** This is a courtesy copy formatted for the Court's use and may be re-formatted from the as-filed version.
3. The Court shall issue the order after hearing.
4. **NOTICE REGARDING COMPLIANCE WITH ORDERS:** All parties and their counsel, if any, are hereby admonished that a failure to comply with the current orders, including, but not limited to, the orders made herein, and/or conduct which frustrates or obstructs such orders may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys' fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5.

8. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
HEARING ON DEMURRER TO: TO: 2ND AMENDED COMPLAINT OF DAVID T. SEENO
FILED BY: NORSAN FINANCIAL & LEASING, INC.
TENTATIVE RULING:

The Court continues the hearing on this motion to June 22, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C24-02532
CASE NAME: ANGEL'S EXCAVATION & CONSTRUCTION, INC VS. JESICA RODRIGUEZ
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT AGAINST NON-PARTICIPATING PARTY WHO COULD NOT OTHERWISE BE LIABLE AS A MATTER OF LAW MOTION FILED TO/FOR
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Jessica Rodriguez ("Defendant")'s "Motion in Equity to Set Aside Default Judgment Against Non-Participating Party" ("Motion"). The Motion is opposed by Plaintiff Angel's

Excavation & Construction, Inc. dba Angel's Excavation & Earthwork ("Plaintiff").

Defendant moves pursuant to Code of Civil Procedure section 473(b) and (d) on several grounds.

For the following reasons, the motion is **GRANTED**.

Procedural History

Plaintiff filed a verified complaint for (1) breach of written contract, (2) breach of a loan agreement, (3) breach of the covenant of good faith & fair dealing, and (4) declaratory relief on September 20, 2024. The Proof of Service of Summons on file indicates that Defendant was served by substituted service on October 14, 2024.

Defendant did not file a response to the Complaint. On December 17, 2024, when no responsive pleading had been filed and served, Plaintiff filed a request for default. A default was entered against the Defendant the same day.

Plaintiff filed a request for Court Judgment on March 10, 2025. Ultimately, an amended judgment was entered on August 29, 2025 in the amount of \$974,003.21.

Defendant filed the instant motion to set aside default judgment on December 8, 2025.

The Court heard argument on April 20, 2026 and continued the matter to June 8, 2026 for additional briefing on whether this default judgment should be set aside as a void judgment.

Evidentiary Objections

First, Plaintiff objects to the evidence proffered by Defendant on reply.

"The general rule of motion practice. . . is that new evidence is not permitted with reply papers. . . '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . . ' and if permitted, the other party should be given the opportunity to respond." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) Reply evidence should not address substantive issues in the first instance but only fill gaps in the evidence created by opposition. (*Id.* at 1538.)

In its discretion, the Court declines to consider Defendant's new reply evidence.

Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure ("Code Civ. Proc.") § 473(b).

Code of Civil Procedure 473(b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after

the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under Code of Civil Procedure section 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Defendant also moves pursuant to subsection (d) which reads: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

Analysis

Section 473, subdivision (d) vests trial courts with authority to “set aside any void judgment.” (Code Civ. Proc. § 473(d).) “[A] trial court may grant a motion to set aside that judgment as void only if the judgment is void on its face. A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.” (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441 [internal citation and quotations omitted].)

If the complaint does not state a cause of action or the allegations do not support a claim for relief, a default judgment is erroneous and “cannot stand.” (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 282 [default judgment reversed where complaint failed to state cognizable claims against defendants]; see *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 829; *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 749 [defendants who defaulted did not admit corporation was their alter ego where complaint was insufficient in pleading elements to justify disregard of corporate entity].) As *Falahati* put it, “It is well established a default judgment cannot properly be based on a complaint which fails to state a cause of action against the party defaulted because, as Witkin explains, ‘[a] defendant who fails to answer admits only facts that are well pleaded.’ Because the third amended complaint alleged no facts with respect to Kondo, there were no facts for Kondo to admit.” (*Falahati v. Kondo, supra*, 127 Cal.App.4th at p. 829, fn. omitted.) *Falahati* went on to hold, “The default judgment in the present case is void for two reasons. The complaint contained no factual allegations with respect to Kondo; therefore it failed to apprise him of the nature of plaintiffs’ demand against him. In addition, the complaint does not specify the amount of damages plaintiffs seek from Kondo” (*Falahati, supra*, at p. 830, fn. omitted, citing *Christerson v. French* (1919) 180 Cal. 523, 525–526.)

Here, the underlying complaint is bereft of individual allegations against Ms. Rodriguez, other than perhaps boilerplate references to “defendants” in various allegations. Nor does it include any alter ego allegations. The complaint alleges that “Defendant Jesica Mariela Rodriguez is a natural person over the age of eighteen years and acts as the A.K.D. Management, Inc.’s Chief Executive Officer[.]” (Complaint at ¶ 4.) The complaint further alleges that “Plaintiff [is] informed and believes and upon such information and belief allege that Defendants were the agent(s), servant(s) and/ or employee(s) of each of the other Defendants and in so doing the acts hereinafter alleged were acting within the course and scope of that agency, employment or representation, with the knowledge, consent and

approval of each of the other Defendants.” (*Id.* at ¶ 14.) These allegations were insufficient to appraise Ms. Rodriguez of the demand against her or plead any cognizable basis for the imposition of liability upon her for the pleaded breach of contract claims.

Despite some broad references to “Defendants, and each of them,” the more specific allegations of the complaint (and its attachments) reflect that the “numerous written contracts” were with “A.K.D. Management Inc” who “agreed to act as the Prime or General Contractor.” (See Complaint, ¶9.) The other causes of action expressly pled that the corporate defendant (and arguably defendant Mejia) were the parties that entered into the subject contract. (See Complaint, ¶¶11 and 25.) It is notable that Exhibit 1 to the Complaint plainly reflects the contracts having been made with “AKD Management,” consistent with the specifically pleaded allegations:

THIS AGREEMENT is made this _____ 15th day of Jul , 2023, between Angel's Excavation & Earthwork, hereinafter called the Subcontractor and _____ AKD Management Ink _____, hereinafter called the Prime.

(Complaint, Exhibit 1 [one of multiple attached forms of contract with similar provisions].)

The same is true of the attached loan agreement:

THIS LOAN AGREEMENT (this “Agreement”) dated this 3 day of 10, 2023

Borrower: A.K.D. Management Inc. (Allan Francisco Mejia, Owner), with Address at: 2526 Shadowbrooke Rd, Brentwood, CA 94513, USA. EIN: 47-3299861, Entity No. 3762646
(The “Borrower”)

(Complaint, Exhibit 2.)

Accordingly, the motion is **GRANTED**.

10. 9:00 AM CASE NUMBER: C24-03270

CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY

***HEARING ON MOTION IN RE: LEAVE TO FILE A 3RD AMENDED COMPLAINT**

FILED BY: MARKER, TANIA

TENTATIVE RULING:

Plaintiff Tania Marker (“Plaintiff”) filed a Motion for Leave to An Amended Complaint on January 23, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on June 8, 2026.

Since the motion filing, Plaintiff was granted leave regarding the filing of a Third Amendment as part of case management proceedings. See Order entered March 13, 2026.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is MOOT and OFF-CALENDAR.

11. 9:00 AM CASE NUMBER: C24-03382
CASE NAME: LAURIAN STUDEVILLE VS. ANTHONY PANTUSO
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A CROSS-COMPLAINT**
FILED BY: KORZH, DMYTRO
TENTATIVE RULING:

Defendants Viktoriia Korzh and Dmytro Korzh (“Defendants”) filed a Motion for Leave to File a Cross-Complaint on January 27, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on June 8, 2026. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The unopposed Motion for Leave to File is GRANTED. Defendants are granted leave to file the proposed Cross-Complaint herein. Such Cross-Complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The parties shall mediate the claims in the Cross-Complaint along with plaintiffs’ claims pursuant to the prior CMC issued herein.
3. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-00212
CASE NAME: K. S. VS. COUNTY OF CONTRA COSTA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Before the Court is Defendant County of Contra Costa’s Demurrer to Complaint. The Complaint alleges a single cause of action for negligence based on Government Code sections 815.2, 815.4, and 815.6.

Factual Allegations

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. In approximately January 2002, Plaintiff was placed in a foster home owned, operated, and managed by non-moving Defendant Wesley Group Home, Inc. (¶ 26.) The foster home was licensed and overseen by the County. (*Ibid.*) Later that year, Plaintiff was transferred to a group home also operated by Defendant Wesley. (*Ibid.*)

In approximately 2002, Plaintiff was sexually abused and assaulted by an adult staff member of the Facility, when Plaintiff was seventeen years old. (¶ 27.) The abuse occurred regularly over the period of several months. (¶ 28.) It is alleged that Defendants observed, or should have observed, signs that

made them aware of the abuse. (¶ 29.) On information and belief, Defendants had actual notice of the sexual abuse as another minor resident of the Facility told Defendants of the sexual abuse of Plaintiff by the staff member. (¶ 30.) No action was taken by Defendants to prevent the abuse, and it was allowed to continue. (*Ibid.*)

Initial Consideration

The Court notes that it received what is styled as “Reply Brief: Defendant County of Contra Costa’s Demurrer to Complaint,” on June 1, 2026. Upon reading the brief, however, it appears that the document is a reply to a motion for leave to amend. This is based in part on the County’s ‘summary of Plaintiff’s argument’ being, in part:

That despite no breach of mandatory duty cause of action being alleged, the County breached miscellaneous mandatory statutory duties and the Plaintiff should be permitted to amend the complaint to insert this newly proposed cause of action in the form of a negligence cause of action. (Reply 3:3-5.)

As discussed below, the Complaint in this matter **does** include a ‘breach of mandatory duty’ claim; it is not a ‘newly proposed cause of action’ in this matter. That argument appears to be associated with another case pending before this Court – *D.B. v. County of Contra Costa*, case no. C22-01913, which is set for hearing on a motion for leave to amend.

To the extent the Reply makes argument relevant to the analysis in this case – the Court will address those arguments. For example, discussing the extent that *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 controls in this matter.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (Code Civ. Proc. § 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Whether a public entity or employee has a duty to the plaintiff is usually a threshold issue to determine before addressing immunity. The parties do not dispute that the County and its employees

owed a duty to Plaintiff. Instead, the focus of the County's demur is whether the County's employees are entitled to discretionary act immunity – and therefore, the County itself is also entitled to immunity.

Plaintiff argues that discretionary act immunity does not apply. In addition, she argues that even if discretionary act immunity does apply, the County is still liable based on breach of mandatory reporting duties – which are separately actionable.

Discretionary Act Immunity

The County argues that the recent case of *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 is controlling. The facts of *K.C.* are similar to those in the present matter. As summarized by the *K.C.* court, the “operative complaint alleged: (1) K.C. was sexually assaulted at two separate foster care placements in the 1970's; (2) K.C. gave notice to County – via social workers – of this abuse; and (3) no investigative or corrective action was taken.” (*Id.* at 616.)

The *K.C.* court began its analysis by noting that “[w]hether or not a public employee is immune from liability under [Government Code] section 820.2 depends ... upon whether the act [or omission] in question was ‘discretionary.’” (*Id.* at 617.) It recognized that such immunity does not extend to all decisions made by public employees, but that “discretionary immunity ‘is limited to policy and planning decisions, and does not reach ‘lower level decisions that merely implement a basic policy already formulated.’” (*Ibid.*) The *K.C.* court then went on to explain at length why the discretionary immunity under Government Code section 820.2 applied to the case before it:

The social workers' decisions at issue relate to “the investigation of child abuse” (*Jacqueline, supra*, 155 Cal.App.4th at p. 466) and discontinuation of a foster home placement (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1466 (*Becerra*)) “based upon suspicion of abuse” (*Alicia T. v. County of Los Angeles* (1990) 222 Cal.App.3d 869, 881 (*Alicia*)). They not only “involve[] the exercise of analysis and judgment as to what is just and proper under the circumstances” (*Kemmerer, supra*, 200 Cal.App.3d at p. 1438) but also constitute “sensitive policy decision[s] that require[] judicial abstention to avoid affecting a coordinate governmental entity's decisionmaking or planning process” (*Barner v. Leeds* (2000) 24 Cal.4th 676, 688 (*Barner*)). (See *Alicia, supra*, at p. 883 [continuing exercise of discretion “in favor of the protection of minor children”].) These qualities hold true for, as here, “preliminary determinations” that “reports of possible abuse” “did not warrant initiation” of further action. (*Jacqueline, supra*, at p. 468; see *Ortega v. Sacramento County Dept. of Health & Human Services* (2008) 161 Cal.App.4th 713, 733 [“[E]valuation of information is an integral part of ‘the exercise of the discretion’ immunized by [Government Code] section 820.2.”]; cf. *Conway v. County of Tuolumne, supra*, 231 Cal.App.4th at p. 1015 [police officer's decision “to investigate or not investigate” a vehicle accident immunized by Gov. Code, § 820.2].)

The *K.C.* court went on to explain the policy reasons in favor of upholding immunity for social workers. (*Id.* at 618.) The Court then noted that, on appeal, *K.C.* argued that the social worker's failure to investigate or take corrective action was ‘operational and ministerial’ because it was done ‘in the

course of the continuing supervision of her foster care'; and those types of decisions are not discretionary, policy-type decisions. (*Ibid.*) K.C. argued that the "decision to remove a child from his or her natural parents and place that child in custodial foster care must be distinguished from decisions made while supervising a foster child *after* the decision to undertake custody and initiate foster care is made. While the former decisions may be discretionary, the latter are operational and ministerial."

Those arguments mirror the arguments made by Plaintiff in this action. For example, Plaintiff argues in her opposition that "there is a clear line of demarcation between the basic policy decision to place a child in foster care and the ministerial acts of county social workers implementing that decision. While the former is entitled to immunity under Gov. Code section 820.2, the latter decisions are not." (Opp. at 10:27-11:2.) The K.C. court addressed these arguments:

We do not dispute that decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1285 (*Gabrielle*); *Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1381 (*Christina*).) Nor do we question that "maintenance of a child in a foster home involves an obligation of continued supervision" and much of what is required "in terms of continued administration of the child's welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial." (*Ronald S. v County of San Diego* (1993) 16 Cal.App.4th 887, 898.) However, decisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such surveillance and are "[no] less 'discretionary' for purposes of the immunity of Government Code section 820.2 than the original placement decision." (*Becerra, supra*, 68 Cal.App.4th at p. 1466.) We do not accept the notion that a "subjective decisionmaking process" "could [be] transmute[d]" "into a ministerial act" (*Ronald, supra*, at p. 897) simply because that process assesses incidents that occurred within a foster home.

The K.C. court then addressed the arguments that the demurrer should be overruled because "the operative complaint did not indicate 'an employee of the County made a considered ... decision' or 'actually exercised' 'discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.'" (*Id.* at 619.)

While a finding of immunity is precluded "solely on grounds that 'the [affected] employee's general course of duties is "discretionary"'" (*Caldwell, supra*, 10 Cal.4th at p. 983, italics omitted) and "requires a showing that 'the specific conduct giving rise to the suit' involved an actual exercise of discretion, i.e., a '[conscious] balancing [of] risks and advantages'" (*ibid.*, italics omitted), "a strictly careful, thorough, formal, or correct evaluation" is not mandatory (*ibid.*, italics omitted). "Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy." (*Id.* at pp. 983–984; see *Gabrielle, supra*, 10 Cal.App.5th at p. 1285 ["Courts have determined immunity applies to such decisions no matter how horrible the outcome, including a situation where a social worker returned a child to a father, who stabbed the child in the heart

and lungs shortly thereafter.”]; *Christina, supra*, 220 Cal.App.4th at p. 1381 [discretionary immunity “applies even to ‘lousy’ decisions in which the [social] worker abuses his or her discretion, including decisions based on ‘woefully inadequate information.’”].) (*Id.* at 619.)

As is the case here, the K.C. court summarized its analysis of the above with respect to the allegations of the complaint before it:

Here, under a “fair reading” of the complaint (*Caldwell, supra*, at p. 984), K.C. essentially alleged County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. “[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.” (*Caldwell, supra*, at p. 984, fn. & italics omitted.) (*Id.* at 619-20.)

Accordingly, the K.C. court found that the County’s demurrer was properly sustained without leave to amend. (*Id.* at 620.)

Plaintiff attempts to distinguish K.C. by primarily relying on *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465. Initially, it is worth noting that the K.C. court was provided with this authority and discussed it in a footnote, noting that *D.G.* addressed whether discretionary immunity was a proper basis for granting summary judgment “and is therefore inapposite.” (K.C. 109 Cal.App.5th at 620 fn. 9.)

“Summary judgment ... provides a method by which, if the pleadings are *not* defective, the court may determine whether the triable issues apparently raised by them are real or merely the product of an adept pleading.” (*Leo F. Piazza Paving Co. v. Foundation Constructors, Inc.* (1981) 128 Cal.App.3d 583, 591, fn. 4 italics in original.) Conversely, “[t]he purpose of a demurrer is to test the legal sufficiency of a pleading not to test the evidence or other extrinsic matters.” (*Ibid.*) In contrast to *D.G.*, the instant case involves a defective complaint. As such, *D.G.* is not applicable.

Plaintiff also cites *Elton v. County of Orange* (1970) 3 Cal.App3d 1053 as support for their position. There, the court determined that decisions about the maintenance, care, or placement of a child ‘do not achieve the level of basic policy decisions’ and are not immune from liability under section 820.2. (*Id.* at 1058; see Opp. at 10:18-26.) It has been noted that *Elton* has limited, if any, precedential value as it was decided before the adoption of statutes requiring social workers to exercise discretion. (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1464.) It was also persuasively distinguished in *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887 which found *Elton* to be a “difficult decision.” (*Id.* at 898.) As the *Ronald S.* court explained: “Selecting and certifying a foster home for care of dependent children seems to us to be an activity loaded with subjective determinations and fraught with major possibilities of an erroneous decision. It appears to us that foster home placement, like adoption placement, constitutes an activity of a co-equal branch of government, and that the discretionary decisions made in connection therewith should be deemed beyond the proper scope of court review.” (*Ibid.*)

This rationale applies with equal strength to decisions related to removing a child from a foster home

based on allegations of abuse.

Mandatory Reporting Duties

Plaintiff points out in opposition that the County's demurrer must fail "because Plaintiff sufficiently alleges breaches of mandatory duties for which there is no immunity." (Opp. at 11:19-20 citing *Holman v. County of Butte* (2025) 111 Cal.App.5th 177, Govt Code § 815.6.) The Complaint **does** specifically allege a basis of liability against the County under California Government Code section 815.6. (§§ 56-57, 69.) Section 815.6 states:

"Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty."

The Complaint alleges several alleged mandatory duties which were allegedly not complied with. (§§ 23, 46, 57.)

The County does not address this alleged basis for liability in its demurrer. As the County's notice indicates, it demurred "on the ground that discretionary immunity under Government Code section 820.2 bars Plaintiff's negligence claim against the County." The negligence claim, however, is based on both alleged discretionary actions as well as alleged violations of mandatory duties. The County does not demur to the alleged violations of mandatory duties as a basis for the negligence claim. It does not discuss liability under section 815.6 at all – not even in reply.

"A demurrer does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) To the extent the County is claiming that the allegations do not support a 'negligence' cause of action, if "the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against the demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The County also appears to argue that the holding in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 controls and does not allow for liability for violation of mandatory reporting duties under section 815.6. The *K.C.* court, however, did not address that issue. There were no discussions of section 815.6, nor any allegations of violations of mandatory reporting violations.

"An opinion is not authority for a point not raised, considered, or resolved therein." (*In re T.C.* (2012) 210 Cal.App.4th 1430, 1433 quoting *Styne v. Stevens* (2001) 26 Cal.4th 42, 57.)

Conclusion

The County's demurrer to the Complaint is **OVERRULED**.

CASE NAME: ALEXANDER DURAN VS. JUDY BROWN
HEARING ON DEMURRER TO: COMPLAINT BY TAYLOR KAMMEIER
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by cross-defendant, Taylor Kammeier, who is in pro per. Kammeier demurs to the cross-complaint by Walnut Park WC HOA ("HOA") pursuant to Code of Civil Procedure sections 430.10 (e), (f), and (g).

The demurrer is **OVERRULED**, as discussed below. Kammeier shall file an answer to the cross-complaint on or before June 18, 2026.

1. Background

The cross-complaint targeted by Kammeier's demurrer was filed by the HOA in response to the original complaint by plaintiff, Alexander Duran. In his complaint, filed February 2, 2025, Duran alleges that Simin Vasseghi, the owner of Unit 95, noticed water dripping and notified Duran, who was the tenant of Unit 96 at the time (in February 2022). Duran then verified the leak and reported it to the property manager, defendant Judy Brown. Brown hired Kammeier to perform repairs. (Duran's Complaint, ¶¶12-16.) On March 1, 2022, Kammeier attempted to repair the leak in Unit 96, finishing at approximately 4:00 p.m. and then moving on to do further work in Unit 95, owned by defendant Vasseghi. (*Id.* at ¶¶17-20.)

Vasseghi later sued Kammeier, the HOA, Brown (the property manager), and the owners of Duran's Unit (defendants Seo and Lee) for negligence in Contra Costa County Superior Court Case No. C22-02678, alleging that Kammeier was unlicensed, performed work (including removing wall tiles to expose piping) against her wishes, and negligently started a fire in her bathroom. (Contra Costa County Superior Court Case No. C22-02678, Complaint filed 12/16/22, ¶¶15-29.) Duran's landlords (Seo and Lee) filed a cross-complaint naming Kammeier. Kammeier was dismissed with prejudice by Vasseghi on October 8, 2024. Seo and Lee also dismissed their cross-complaint with prejudice in December of 2024.

On February 2, 2025, Duran brought the present action against his landlords, the property manager, the HOA, Vasseghi, and Kammeier. He claims damages for loss of personal property. (Duran's Complaint, ¶30.)

On January 1, 2026, the HOA filed its cross-complaint against Kammeier and others. The cross-complaint, which incorporates plaintiff's original complaint herein, seeks indemnity, apportionment of fault, and declaratory relief. Kammeier responded by filing this demurrer.

As to the principal complaint, Duran took Kammeier's default on May 26, 2026.

2. Meet and Confer / Order to File Signed Declaration

The declaration in support of the demurrer is insufficient.

Aside from being unsigned, the declaration fails to set forth compliant meet and confer efforts. Kammeier failed to engage in such efforts "in person, by telephone, or by video conference." (Code Civ. Proc., §430.41(a).) However, failure to meet and confer in compliance with the statute is not a permissible basis for either sustaining or overruling a demurrer. While the HOA notes the problem (Memorandum of Points and Authorities in Support of Opposition, 3:13-16), it does not oppose on the basis that the efforts were insufficient. Given the improbability that meeting and

conferring in the correct format would change the results here, the Court proceeds with its ruling.

Because “[a]n unsigned paper *shall* be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party” (Code Civ. Proc., § 128.7 (a), emphasis added), Kammeier is directed to promptly file a declaration that is captioned, “Amended Declaration in Support of Demurrer,” (for ease of filing) that sets forth the same facts, but includes a signature.

3. Request for Judicial Notice

Kammeier requests judicial notice of the dismissal filed in the previous action, Contra Costa County Superior Court Case No. C22-02678. The request is unopposed and is **GRANTED**.

4. Legal Standard

A court assessing a demurrer accepts as true the facts pleaded in the complaint, but rejects contentions, deductions and conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966–967.) The Court gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context. (*Blank, supra*, 39 Cal.3d 311, 318.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) In ruling on a demurrer, the court considers the face of the pleading attacked and matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

5. Discussion

Kammeier demurs on the grounds that the cross-complaint is barred by res judicata because a final judgment was entered in the first case. In a related argument, he contends that there is no derivative indemnity liability since the underlying claim was extinguished.

The arguments lack merit despite Kammeier’s correct observation that the alleged liability arises from the same transaction. The HOA’s arguments in opposition are also correct. These include that the elements of claim and issue preclusion are not satisfied here.

The prerequisite elements for applying the doctrine of preclusion to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding. (*State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 446-447.) Claim preclusion prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. (*Id.*) Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. *Id.* If claim preclusion is established, it operates to bar relitigation of the claim altogether. (*Id.*) Issue preclusion prohibits the relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. (*Id.*)

As applied here, the third element of claim preclusion is not satisfied. The HOA never filed any claim against Krammier in the first suit. Additionally, the plaintiff in the second suit, Duran, was not a party to the first. While Duran’s landlords *were* parties in the first suit, *their* dismissal of a cross-complaint against Kammeier would not necessarily bar the HOA’s claim for indemnity with respect to Duran’s claim. The parties and issues are therefore different such that claim preclusion does not apply

(at least on demurrer).

Issue preclusion applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. (*State Comp. Ins. Fund, supra*, 50 Cal.App.5th 422, 447-448.) Here, the elements are not satisfied. The issue here is damage to the personal property of Duran, who did not assert any claims in the first suit. Accordingly, the issue is not identical to any issue that could have been present in the first suit. As to the third element, no issues in that case were “actually litigated” given the dismissal relatively early in the proceedings. The issue must have been actually litigated and determined in the first action, a standard not satisfied by a dismissal with prejudice. (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 22.) Accordingly, issue preclusion also does not apply.

With respect to comparative indemnity, Kammeier correctly points out that a loss is necessary for the cause of action to accrue (e.g., payment of either a judgment or settlement). Still, the effect of this rule is that the statute of limitations does not begin to run until the time of loss. (Code Civ. Proc., § 312 [civil actions can only be commenced after cause of action accrues]; see also *Valley Circle Estates v. Vtn Consol.* (1983) 33 Cal.3d 604, 612 [indemnity cause of action does not accrue until he has suffered actual loss].) This undermines the demurrer’s statute of limitations argument.

Arguably, the point also suggests the cross-action is premature here. However, courts generally allow cross-complaints to be filed within the plaintiff’s primary case where the cross-complaints seek declaratory relief concerning indemnity for any judgment that *may* be rendered on plaintiff’s complaint. (*Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261 [“Overburdened courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions” and this process represents a more orderly and expeditious resolution of the controversy in multiple party cases].) This is true even where plaintiff may be barred from suit by the statute of limitations. (*Valley Circle Estates, supra*, 33 Cal.3d at 611.)

As to Kammeier’s demurrer pursuant to Code of Civil Procedure, § 430.10 (e) and (g) (respectively pertaining to uncertainty and inability to determine whether a contract is written, oral, or implied), these grounds are essentially unsupported by any argument. The Court construes this as an admission on Kammeier’s part that these are not grounds on which the Court can sustain the demurrer. (See Rule of Court 3.1113(a) [court may treat the absence of a memorandum as a waiver of all grounds not supported].)

In any event, uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) A complaint or cross-complaint must simply contain a statement of the facts constituting the cause of action, in ordinary and concise language. (Code Civ. Proc., § 425.10 (a).) Here, the cross-complaint meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 [“demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures”].)

14. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA

***HEARING ON MOTION IN RE: DISQUALIFY COUNSEL**

FILED BY: JIMENEZ, DANIEL

TENTATIVE RULING:

On November 12, 2025, defendant Robert Jacobsen ("Defendant Jacobsen") filed a motion order disqualifying Geoffrey Wm. Steele ("Mr. Steele") and the Steele Law Group, Inc. (collectively, "Plaintiffs' Counsel") from serving as counsel for plaintiffs herein (the "Motion to Disqualify Counsel"). The Motion to Disqualify Counsel was set for hearing on June 8, 2026.

Background

Defendant Jacobsen contends that Mr. Steele received confidential information material to this dispute and his continued representation of plaintiffs creates an impermissible conflict of interest.

Defendant Jacobsen asserts that Mr. Steele represented him in a federal case involving the Tice Valley Property that is the subject of this litigation and received information "about Mr. Jacobsen's position, financial background, and litigation objectives concerning the Tice Valley Property and related trust disputes." See Motion to Disqualify Counsel, p. 4 *et seq.*

Defendant Jacobsen filed a Request for Judicial Notice regarding certain portions of the California Rules of Professional Conduct (the "RJN"). The RJN is GRANTED.

Analysis

A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice. *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469. Disqualification, however, is "a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a 'substantial continuing effect on future judicial proceedings.'" *Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.

Ultimately, disqualification motions involve a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of professional responsibility. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145. "The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process." *Id.*

On June 1, 2026, a "Minute Order of April 1, 2026 Denying Motion to Disqualify Attorney Geoffrey Steele & Findings of Fact" was filed herein. The paper attaches a minute reflecting proceedings in Case No. MSD20-03656 before Judge Lee (Department 25).

The Minute Order makes reference to an apparent denial of "Respondent's Motion for Disqualification of Counsel for Attorney Paula Grohs and Attorney Geoffrey Steele."

However, no opposition papers have been filed articulating the particulars regarding the relationship, if any, of this matter to MSD20-03656 and why or how any determination of the disqualification in such matter is determinative of the pending motion in this case.

Disposition

The Court further finds and orders as follows:

1. The **PARTIES ARE ORDERED TO APPEAR.**

15. 9:00 AM CASE NUMBER: C25-02543
CASE NAME: DWAYNE ROBINSON VS. ALVARO PANAMENO
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: ROBINSON, DWAYNE CAMERON
TENTATIVE RULING:

Jose Alfonso Ramirez-Gomez and Jacoby & Meyers Attorneys LLP (“Counsel”) filed a motion to be relieved as counsel on January 23, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on June 8, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Dwayne Cameron Robinson (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a “breakdown and conflict in the attorney-client relationship, making it unreasonably difficult to carry out effective representation of Plaintiff.” See Declaration filed January 23, 2026, Attachment, ¶2 *et seq.*

No opposition or other response has been filed by Plaintiff. Counsel describes discussions with Plaintiff wherein Plaintiff consented to the withdrawal, but Plaintiff did not cooperate in signing paperwork to dismiss the case or substitute another attorney into it. *Id.* at ¶4-11.

Plaintiff has been given notice of the Motion to be Relieved as Counsel.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

16. 9:00 AM CASE NUMBER: C25-03271
CASE NAME: LESLIE GARDETTE VS. DAVID JOHNSON
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: JOHNSON, DAVID
TENTATIVE RULING:

Introduction

Defendants Diamond Ridge Post Acute, LLC d/b/a Diamond Ridge Healthcare Center; David Johnson; and Frank Johnson’s (collectively, “Defendants”) file a Motion to Compel Arbitration and to Stay Civil Action for an order compelling Plaintiff Leslie Gardette, individually and as heir and successor-in-interest to Donna Gardette, deceased (“Plaintiff”), to arbitrate all claims asserted in this action pursuant to the binding Arbitration Agreement executed in connection with Donna Gardette’s admission to Diamond Ridge Healthcare Center. Defendants further request that this action be stayed

pending completion of arbitration. Defendants filed their Motion on January 16, 2026.

The Motion relates to Plaintiff Leslie Gardette, individually and as heir and successor-in-interest to Donna Gardette's Complaint for (1) Negligence; (2) Elder Abuse/Neglect (Welfare and Institutions Code § 15600, et seq.); (3) Violation of Resident's Rights (Pursuant to Health & Safety Code § 1430(b)); and (4) Wrongful Death filed on November 06, 2025.

For the reasons articulated below, **Defendants' Motion to Compel Arbitration is GRANTED IN PART and DENIED IN PART**. The Court denies arbitration of the second cause of action for elder abuse and the third cause of action for violation of resident's rights. The Court compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.'" (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (*Id.* [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability...." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Analysis

Defendants' Initial Burden

Defendants provide an electronically signed copy of the Arbitration Agreement. (Garcia Decl. ¶ 6, Ex. A.) Plaintiff does not dispute the existence of the Arbitration Agreement. As such, Defendants have met their initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Plaintiff's Electronic Signature

"If the moving party meets its initial prima facie burden [existence of an agreement] and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast*

Community Clinic (2021) 72 Cal.App.5th 158, 165.) Some examples of opposing the agreement include testifying under oath or declaring under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (Id.) A party opposing arbitration by challenging the authenticity of his or her signature “need not *prove* that his or her purported signature is not authentic but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Here, Plaintiff makes arguments that the e-signature could have been signed by anyone but did not present a declaration that someone else electronically signed the arbitration agreement. No declaration exists for the court to corroborate any of the arguments in Plaintiff’s opposition.

Unconscionability

The “unconscionability doctrine ‘has both a procedural and a substantive element.’” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) “The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.” (*Ibid.* quoting *Pinnacle, supra*, 55 Cal.4th at 246.)

“Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’” (*OTO, L.L.C.* 8 Cal.5th at 125.) “Instead, they are evaluated on a ‘sliding scale.’” (*Ibid.*) “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to ‘conclude that the term is unenforceable.’” (*Ibid.*) “Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required.” (*Ibid.*)

“The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.)

Procedural Unconscionability

Procedural unconscionability involves the components of “oppression” and “surprise.” (*OTO, supra*, 8 Cal.5th at 126.) “Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice.” (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, “involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Ibid.*)

Minimal Oppression

A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’” (*OTO, L.L.C., supra*, 8 Cal.5th at 126 quoting *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) “An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it

basis.” (*Ibid.* quoting *Baltazar v. Forever 21, Inc.* 2016) 62 Cal.4th 1237, 1245.)

Choice and Time to Sign the Agreement

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable under the ‘oppression’ analysis because it is a contract of adhesion and in support of her argument points out that Defendant presented Plaintiff with the Agreement at a time of inherent unequal bargaining power, and Plaintiff signed the agreement after her 75-year-old elderly mother who was suffering from dementia, partial paralysis, and multiple prior strokes — had just undergone surgery and required professional wound care — and Plaintiff not have the time, leverage, or state of mind to carefully review and negotiate complex legal documents with a skilled nursing facility. (Opposition at p. 8: 1-7.)

Plaintiff’s argument about having a lack of meaningful choice is not convincing for three reasons. First, at the top of the Arbitration Agreement in a bold outlined box, in big, bolded letters reads: “Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility or to continue to receive care at the facility.” Second, Article VI of the agreement granted Plaintiff 30 days to rescind the agreement from the date of signing, giving her the choice to take back her decision to arbitrate her claims. Third, the timing at which the agreement was signed shows that Plaintiff had a meaningful choice to enter into the agreement. The Decedent was admitted on October 16, 2024, and began receiving treatment and care. Then 17 days later, Plaintiff chose to sign the agreement.

Remote Electronic Signature Without Oversight

As mentioned above, any disputes relating to the authenticity of the agreement, including the signatures, must be accompanied by declarations or affidavits. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Plaintiff did not present a declaration denying that she did not sign the agreement or any facts surrounding her signing of the agreement, therefore her arguments cannot be considered by this court. Plaintiff’s contention that the timing difference of 13 minutes suggests that no one from the facility was present with Plaintiff when she signed is speculation that is unsupported by any other facts, context, or evidence. Thus, any argument relating to the electronic execution is improper because it is unsupported by evidence.

California courts recognize that the “adhesive aspect of an agreement is not dispositive.” (*Serpa v. Cal. Surety Investigations, Inc.*, (2013) 215 Cal.App.4th 695, 704.) “When . . . there is no other indication of oppression or surprise, ‘the degree of procedural unconscionability of an adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.’” (*Id.*)

Failure to Provide Arbitration Rules

Plaintiff contends that the agreement fails to identify any arbitration organization or attach any rules governing the arbitration. No copy of JAMS, AAA Commercial, or any other recognized arbitration rules was provided. Instead, the Agreement provides only that a neutral arbitrator will be selected “using the rules of the Federal Arbitration Act (9 U.S.C. sections 1-16)” if the parties cannot agree. (Garcia Decl., Ex. A, Art. VIII, sec. 8.1.)

Defendants did not have to provide arbitration rules because the parties had not yet decided on an

arbitrator. A party's failure to provide arbitration rules is only unconscionable when the agreement states that the parties are to be bound by specific set of rules, such as AAA or Jams, and the rules are not provided. (See *Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1470-71.) The agreement specifically states that "The parties shall mutually agree upon the appointment of a single neutral arbitrator." (See Garcia Decl., Ex. A, Article VIII.) This agreement does not identify which rules will bind the parties. Even if the Agreement did specify the governing ruled, the *Peng* Court noted that a failure to attach the governing arbitration rules is of minor significance in the analysis for procedural unconscionability. (Id. at 1471.)

Surprise

Surprise is generally found when a party hides an unconscionable provision in the agreement. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) *Davis* describes the arbitration clauses 67 and 49 lines long respectively, including a 15-line sentence, typed in small font, full of complex legal citations, and with little to no spaces or titles making the clauses visually impenetrable. (*Davis v. TWC Dealer Group, Inc.* (2019) 41 Cal.App.5th 662, 666-667.) The Agreement described in *Kho* was slightly over a page long, with extremely small font, a dense 51-line paragraph covering arbitration, which includes a 12-line long sentence that 'challenges the limits of legibility.'" (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 128.)

This is not the case with the instant Arbitration Agreement. The operative Arbitration Agreement is four pages long with titled provisions. The size and font type are not hard to read, and it is appropriately spaced for ease of reading. Although there are some laws that are listed, they are not accompanied with overly complicated legal citations or jargon. There are no particularly long paragraphs or sentences.

The *Desert Outdoor* Court observed the "cardinal rule of contract law is that a party's failure to read a contract, or to carefully read a contract, before signing it is no defense to the contract's enforcement." (*Desert Outdoor Advertising v. Superior Court* (2011) 196 Cal.App.4th 866, 872.) "When a person with the capacity of reading and understanding an instrument signs it, [s]he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground that he failed to read it before signing it." (*Bolanos v. Khalatian* (1991) 231 Cal.App.3d 1586, 1590.) Even failure to understand the English language proficiently is not a defense to enforcing an arbitration provision or agreement, "it is incumbent upon the party to have it read or explained to him or her." (*Caballero v. Premier Care Simi Valley LLC* (2021) 69 Cal.App.5th 512, 519.)

Plaintiff argues that there is no evidence that she was informed she could decline the Agreement or that she had the opportunity to consult with counsel before signing. This argument is not persuasive.

For three years, Plaintiff, as Decedent's power of attorney, presumptively was reviewing and signing many medical documents containing similar provisions and arbitration agreements. Failure to read through the agreement is not a defense to enforce arbitration. Portions of the agreement are very straightforward. For example, the right to rescind is a stand-alone Article consisting of a short single sentence. Furthermore, Plaintiff's argument that she was under time pressure is defeated by the 17-day period she took to sign the arbitration agreement.

Thus, at most, any procedural unconscionability is minimal, requiring a heightened showing of

substantive unconscionability.

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra*, 61 Cal.4th at 910-11, 913; *Armendariz, supra*, 24 Cal.4th at 117.)

Substantive unconscionability focuses on the substantive fairness of the terms and whether the agreement is “unfairly one-sided.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra*, 62 Cal.4th at 1248.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez, supra*, 61 Cal.4th at 911-12.)

“A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to “shock the conscience.” [Citation omitted.]’” (*Pinnacle, supra*, 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Arbitration Agreement is Bilateral

Plaintiff posits that the Arbitration Agreement is unfairly unilateral since a resident or family member could foreseeably bring against the Facility, while the Facility retains comparatively all benefits of the arrangement. (Opposition at p. 9: 20-25.)

A close examination of the Arbitration Agreement reveals that the Agreement is bilateral in that both parties are waiving their right to a jury and submit all their claims to arbitration. (See Garcia Decl., Ex. A, Article 1.1, 2.2.) Article II, section 2.3 provides “All parties to this Agreement are giving up their Constitutional right to have all disputes decided in a court of law before a jury, and instead are accepting the use of binding arbitration.” (See Garcia Decl., Ex. A, Article 1.1, 2.3.)

Arbitration Agreement Unlawfully Covers Non-Arbitrable Claims

Plaintiff contends that Article II Section 2.1 of the Arbitration Agreement may be deemed substantively unconscionable because it forces arbitration of “any dispute” relating to the “provision of care, treatment and services,” including “any action for injury or death arising from negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430).” (Oppo at p. 9: 26; 10: 1-4 citing Garcia Decl., Ex. A, Art. II, sec. 2.1.) The Court finds merit in Plaintiff’s contention.

Arbitration of the Elder Abuse and Resident’s Rights Causes of Action Cannot Be Compelled

Anyone may waive the advantage of a law intended solely for their benefit. But a law established for a public reason cannot be contravened by a private agreement. (Civ. Code, § 3513.)

Legislature's expression of public policy through their legislation makes clear that under no circumstances may a patient or resident waive his or her right to sue for violations of rights under the

Patients Bill of Rights, or other federal and state laws and regulations, which would include the existing Elder Abuse and Dependent Adult Civil Protection Act. (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 476.) The First District Court of Appeal reasoned that courts should rule, consistent with public policy expressed in the statutes enacted by the Legislature to protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect, and to ensure appropriate relief for such mistreatment. (Id.)

Therefore, Plaintiff's second cause of action for elder abuse and third cause of action for resident's rights cannot be compelled to arbitration.

Arbitration of the Wrongful Death Claims Can Be Compelled

Plaintiff's reliance on *Holland v. Silver Screen* (2025) 18 Cal.5th 364 is misplaced. Plaintiff argues that *Holland* holds that an arbitration agreement signed by a decedent does not bind heirs. (Opposition at p. 11:2-3.) This is inaccurate. *Holland* merely remanded that matter to give plaintiffs a chance to provide additional details before determining whether their wrongful death claim falls within the scope of Code of Civil Procedure section 1295 and thus must be ordered to arbitration. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 385.)

Plaintiff also cited that the Ninth Circuit observed, "a non-signatory cannot be compelled to arbitrate absent some showing that it was the intent of the parties to bind the non-signatory to the arbitration agreement." (*Kramer v. Toyota Motor Corp.* (9th Cir. 1989) 705 F.2d 1122, 1130.) This cuts in favor of Defendants.

The subject Arbitration Agreement expressly provides in multiple places that the signatory is signing the Arbitration Agreement on behalf of the resident and themselves as an individual:

ARTICLE III **(Scope of Agreement)**

3.1 This Agreement shall be binding for any dispute, except for disputes pertaining to collections or evictions. This Agreement is binding on all parties, including the Resident's representatives, executors, family members, and heirs who bring any claims individually or in a representative capacity. The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors in interest and heirs are subject to binding arbitration.

By virtue of Resident's consent, instruction and/or durable power of attorney, I hereby certify that I am authorized to act as Resident's agent in executing and delivering of this arbitration agreement. I acknowledge that the Facility is relying on this representation. I also acknowledge that pursuant to the terms of this agreement, any claims that I may assert in my individual capacity and/or as a successor in interest that arise out of or relate to the provision of or failure to provide any services (medical or otherwise) or goods by the Facility to the Resident or the admission agreement are governed by this arbitration agreement.

Date: November 02, 2024 GMT

E-SIGNED by Leslie Gardette
on 2024-11-02 15:11:48 PDT

Legal Representative/Agent of Resident and
Individually

Date: November 02, 2024 GMT

E-SIGNED by Christine Garcia
on 2024-11-02 14:58:43 PDT

Facility Representative

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Thus, Plaintiff's sixth cause of action for wrongful death must be compelled to arbitration.

Severability

"An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms." (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 223.) Severance may be properly denied when the agreement contains more than one unconscionable provision, and "'there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.'" (*Baxter v. Genworth North America Corp.* (2017) 16 Cal.App.5th 713, 738.)

Here, the Court locates one unenforceable term, which is severable.

The Court agrees that the provision which compels arbitration of statutory claims concerning all California Welfare and Institutions Code sections and Health and Safety Code section 1430 claims is unenforceable. See the portion of the Arbitration Agreement highlighted below.

ARTICLE II

(Other Claims)

2.1 It is further understood that any dispute between Resident, including Resident's heirs and/or agents, and Diamond Ridge Healthcare ("Facility"), and their owners, investors, operators, officers, directors, administrators, staff, employees, agents, and any management and administrative services company and all related entities and individuals, their staff, personnel, employees, owners, officers, directors, members, and agents that provide services to the Facility that relates to the provision of care, treatment and services the Facility provides to the Resident, (collectively referred to herein as "Facility"), including any action for injury or death arising from negligence, torts, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430), and all other statutory claims under any applicable California code, will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings.

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Therefore, the Court strikes the highlighted term from the Arbitration Agreement.

On balance, Plaintiff has failed to meet her burden to show that the Arbitration Agreement should not be enforced due to unconscionability. Thus, Defendant's motion to compel arbitration shall be partially granted.

Stay

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding "section 4 of the USAA does not apply in California court" but not deciding whether section 3 applies].)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court's inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

The FAA applies here as it is expressly stated in the Agreement that the FAA applies and that the

California Code of Civil Procedure does not govern. (Garcia Decl., Ex. A, Article VII, 7.1-7.3.)

The arbitration agreements in this case are governed by the FAA. CCP § 1281.2 does not apply when the FAA's rules govern. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115-16.)

Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration." (*Rodriguez, supra*, 136 Cal.App.4th at 114-115.)

Conclusion

For the reasons analyzed above, **Defendants' Motion to Compel Arbitration is GRANTED IN PART and DENIED IN PART.** The Court denies arbitration of the second cause of action for elder abuse and third cause of action for resident's rights. The Court compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

17. 9:00 AM CASE NUMBER: C26-00187
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: LABOR COMMISSION JUDGMENT
FILED BY:

TENTATIVE RULING:

The matter was originally set for hearing on June 1, 2026 when the matter was filed on January 20, 2026. That hearing was later continued to June 8, 2026. There is currently a hearing set for September 14, 2026 on plaintiff's motion filed April 21, 2026 regarding service of the Summons and Complaint. Given the present lack of service, the hearing is VACATED at this time and can be reset as appropriate in connection with case management proceedings in the matter once service of process is done or as the Court may otherwise hereafter order.

18. 9:00 AM CASE NUMBER: C26-00231
CASE NAME: JANE DOE VS. BRANDON BANKS
***HEARING ON MOTION IN RE: FOR LEAVE TO PROCEED UNDER A PSEUDONYM**
FILED BY: DOE, JANE

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff's Motion to Proceed Under a Pseudonym ("Motion") on the grounds that public identification in this action would expose her to concrete, collateral legal and contractual harm unrelated to the merits of her claims.

For the following reasons, Plaintiff's Motion to Proceed Under a Pseudonym is **DENIED**.

Factual Background

In July 2024, Plaintiff retained Defendants to represent her in pursuit of claims including gender-based pay discrimination, retaliation, and constructive termination against her Former Employer. At the time of retention, Plaintiff had already secured new employment. After Defendants filed a public

civil complaint on Plaintiff's behalf, Plaintiff's employment with a subsequent employer ended abruptly. Plaintiff contends that this termination constitutes a central component of the damage she suffered because of Defendants' representation. However, Plaintiff claims she is contractually restricted in how that incident may be described publicly.

Plaintiff entered into a private severance agreement with the subsequent employer which includes confidentiality and non-disparagement provisions. The severance agreement restricts Plaintiff from publicly making statements that could reasonably be construed as accusing the employer or its representatives of unlawful, improper, or retaliatory conduct. As a result, Plaintiff takes the position that publicly identifying herself in this malpractice action would put her at risk of breaching her contractual obligations under the severance agreement.

Legal Standard for Use of Pseudonyms

The First Amendment of the United States Constitution guarantees that Court proceedings are open and public. (*Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555, 580.) Such public access is essential to a functional democracy, because it "promotes trust in the integrity of the court system and it exposes abuses of judicial power to public scrutiny." (*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 110-111 citing *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1221.) "When an individual files a lawsuit in state court to accomplish private ends... they do so with full knowledge of the possibly disadvantageous circumstance that the documents and records filed [therein] will be open to public inspection." (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 237-238 citing *Estate of Hearst* (1977) 67 Cal.App.3d 777, 783.)

Under Code of Civil Procedure ("Code Civ. Proc.") section 422.40, in a civil complaint, the title of the action shall include the names of all the parties, except as provided by statute or rule of the Judicial Council. Courts only allow parties to proceed under a pseudonym in special circumstances, where the parties' need for anonymity outweighs prejudice to the opposing party and the public, mainly because of the serious constitutional implications involved. (*Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758, 766-767; *Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 110; *Does I thru XXIII v. Advanced Textile Corp.* (9th Cir. 2000) 214 F.3d 1058, 1067.)

Because of the inherently sensitive nature of some proceedings, there are some California statutes which specifically allow for keeping certain parties' identities confidential. This includes California Civil Code ("Civ. Code") section 1708.87(f)(1)[plaintiff in action for nonconsensual distribution of sexually explicit materials may proceed under pseudonym], Code Civ. Proc. section 372.5 [allowing pseudonyms for guardian ad litem litigating on behalf of a minor], Civ. Code section 3427.3 [allowing pseudonyms in actions for interference with access to health care], Civ. Code section 1708.89 [allowing pseudonyms for doxxing] and California Rules of Court ("CRC"), Rule 8.401(a) [providing for anonymity in juvenile appeals].

In the absence of a statute addressing a pseudonym, the Court may still grant such anonymity to preserve an important privacy right. (*Doe v. Lincoln Unified School Dist.*, supra, 188 Cal.App.4th at 766.) In determining whether to allow a party to proceed in a case under a pseudonym where no statute is involved, the Court must apply the overriding interest test. (*Department of Fair Employment & Housing*, supra, 82 Cal.App.5th at 111.) A party seeking anonymity has the burden to show that

there exists an overriding interest. (Id at 112.)

Procedurally, because a hearing is required, a party who wants to proceed anonymously will file the initial complaint or petition conditionally under a pseudonym and then move for an order granting permission to proceed that way. If the request is granted, the initial pleading can remain. If pseudonym use is denied, the pleading must be amended to state the party's true name.

(*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 111, fn. 1.)

Analysis

Overriding Interest Test

Plaintiff is relying solely on common law as her basis to proceed under a pseudonym, thus the Overriding Interest Test must be applied. Under the Overriding Interest Test, a Court will find an overriding interest exists where (1) there exists an overriding interest that supports anonymity; (2) there is a substantial probability that the interest will be prejudiced absent anonymity; (3) the proposed anonymity is narrowly tailored to serve the overriding interest; and (4) no less restrictive means exist to protect the interest. (*Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, citing *NBC Subsidiary (KNBC-TV), Inc, supra*, 20 Cal.4th at 1218-1221.) In considering whether there is an overriding interest, the Court “must bear in mind the critical importance of the public’s right to access judicial proceedings.” (*Department of Fair Employment & Housing, supra*, 82 Cal.App.5th at 111-112.) Outside of an explicit statute, proceeding by pseudonym occurs only in the rarest circumstance. (*NBC Subsidiary (KNBC TV), Inc, supra*, 20 Cal.4th at 1226.)

Overriding Interest that Supports Anonymity

California Courts have recognized at least two overriding interests which are relevant enough to allow for the redaction of names. The first interest is maintaining privacy of highly sensitive and potentially embarrassing personal information. (*In re M.T.* (2024) 106 Cal.App.5th 322, 336–341 [records revealing gender identity change]; *Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1068 [medical and psychological records].) The second interest is protecting against the risk of retaliatory harm. (*Department of Fair Employment & Housing, supra*, 82 Cal.App.5th at 112 [protection against physical retaliation to family members].)

Plaintiff misapplies *Google* in her argument in support for proceeding with a pseudonym. In *Doe v Google*, the First District Court of Appeal was discussing the applicability of the Garmon Preemption of whether the National Labor Relations Act preempted the plaintiffs PAGA claims against Google’s confidentiality rules. (*Doe v. Google, Inc.* (2020) 54 Cal.App.5th 948, 956-957.) Plaintiff argues that naming herself in this lawsuit would violate the confidentiality and non-disparagement provisions in her severance agreement which would force Plaintiff to pay back her severance payment and that she would open herself to collateral legal exposure in her pending arbitration proceedings. (Motion at p. 4: 7-16; 5: 10-13.) The issues discussed in *Google* are not helpful in determining whether Plaintiff may proceed with a pseudonym.

Sensitive and Embarrassing Information

Plaintiff did not move on the basis to maintain privacy of highly sensitive and potentially embarrassing personal information. Defendants point out that Plaintiff has not provided any case law or authority

that severance agreements contain embarrassing or highly sensitive material. Severance agreements are extremely common, and there is nothing inherently embarrassing about a person losing their job and entering into an agreement concerning their departure from a job. Plaintiff has failed to present evidence about the severance agreement containing sensitive or embarrassing information.

Potential Retaliation

In *Does I thru XXIII v. Advanced Textile Corp.*, the Ninth Circuit Court of Appeals noted that in determining when evaluating retaliation in the context of proceeding anonymously, it should evaluate (1) the severity of the threatened harm, (2) the reasonableness of the anonymous party's fears, (3) the anonymous party's vulnerability to such retaliation. (*Does I thru XXIII v. Advanced Textile Corp.* (9th Cir. 2000) 214 F.3d 1058, 1068.)

In *Advanced Textile Corp.*, the Court held the trial court abused its discretion in denying plaintiffs, who were foreign (People's Republic of China and Bangladesh) garment workers on the island of Saipan, permission to bring their lawsuit anonymously. (Id. at 1063.) In making its decision, the Court acknowledged that the trial court failed to consider the plaintiffs' evidence that they could face physical violence and deportation to China or Bangladesh, where they would be arrested upon arrival. (Id.) In *Doe v. Stegall* (5th Cir. 1981) 653 F.2d 180, the Court of Appeals reversed a district court order denying a protective order to plaintiffs, who were schoolchildren. In coming to its decision, the Court noted that the plaintiffs, who were children, were especially vulnerable to threats of retaliation. (Id. at 186.) In *United States v. Doe* (9th Cir. 1980) 655 F.2d 920, the Court acknowledged that courts have permitted the use of pseudonyms to protect person from harassment, injury, ridicule or personal embarrassment. The case involved long-term prison inmates who feared retaliation in prison for cooperating with the government. (Id. at 929.)

Plaintiff basis for proceeding under a pseudonym is the potential financial retaliation of losing her severance pay by violating confidentiality and non-disparagement provisions in her severance agreement, and that it would create collateral legal exposure with respect to her pending arbitration proceedings. (Motion at p. 4: 7-16; 5: 10-13.) The Court looks to analyze Plaintiff's arguments under the three-factor test for evaluating retaliation under *Advanced Textile Corp.*

Severity of Threatened Harm

Plaintiff provides no argument or evidence of the severity of the threatened harms she complains of. Plaintiff mentions losing her entire severance award but does not describe the amount of her severance or explain the implications or severity of losing her severance would have on her. Plaintiff mentions collateral legal exposure with respect to her pending arbitration proceedings, but she does not explain what they are, their magnitude, or the effects it would have on Plaintiff.

Plaintiff does not provide adequate evidence for the Court to evaluate the severity of threatened harm of Plaintiff's potential retaliation. Plaintiff has failed to carry her burden of proof to establish an overriding interest that supports anonymity and does not pass the overriding interest test. The Court's analysis cannot go any further.

Conclusion

Based on the analysis above, Plaintiff's Motion to Proceed Under a Pseudonym is **DENIED**.

19. 9:00 AM CASE NUMBER: MSN20-1173
CASE NAME: TOBIAS M LESTER VS DEBORAH COOPER
***HEARING ON MOTION IN RE: AWARD OF REASONABLE ATTORNEY FEES AND COSTS**
FILED BY: LESTER, TOBIAS M.
TENTATIVE RULING:

The Court, *sua sponte*, CONTINUES this matter to **August 31, 2026, 9:00 am**, in **Department 34**.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM INTERROGATORIES, SET ONE**
FILED BY: FULLER PROPERTIES, LLC
TENTATIVE RULING:

The matter is off calendar pursuant to the Court's prior rulings.

21. 9:01 AM CASE NUMBER: C24-02351
CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO SPECIAL INTERROGATORIES, SET TWO**
FILED BY: NFP CORPORATE SERVICES (CA), INC.
TENTATIVE RULING:

Parties to Appear.

22. 9:01 AM CASE NUMBER: C24-02351
CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE**
FILED BY: NFP CORPORATE SERVICES (CA), INC.
TENTATIVE RULING:

Parties to Appear.

23. 9:01 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS RESPONSES TO REQUESTS FOR PRODUCTION, SET TWO**

FILED BY: NFP CORPORATE SERVICES (CA), INC.

TENTATIVE RULING:

Parties to Appear.